

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: July 16, 2026

#	Case Name	Tentative
1.	30-2025-01456606 Mackey vs. Packnit	1. Case Management Conference 2. Motion to Be Relieved as Counsel of Record Marc Lazo of K&L Law Group, P.C. (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Daniel Mackey. The hearing on this motion was continued from May 14, 2026 to July 16, 2026 and Moving Attorney was ordered to provide updated proofs of service to the Court on or before the hearing date showing that Plaintiff was properly served with the moving papers either by mail or email and, if service was by email, provide a supplemental declaration stating that the electronic service address is the client’s current electronic service address as required by rule. 3.1362(d)(2). The updated proofs of service and/or supplemental declaration have not been filed as ordered. Thus, because Moving Attorney has failed to show that service of the moving papers was proper, the motion is DENIED without prejudice. Moving Attorney to give notice.
2.	30-2025-01489384 Youssef vs. Andrawos	1. Motion to Be Relieved as Counsel of Record Bruce A. Wilson (“Moving Attorney”/ “MA”)) moves to be relieved as counsel of record for Defendant Christin Andrawos. The motion is unopposed. Moving Attorney has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. The motion satisfies the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362. The motion is GRANTED. This will take effect upon filing of a proof of service showing this order has been served on MA’s client. ***The Court will interlineate Paragraph 8 of the Proposed Order with the hearing date on the Motion to Compel Answers to Special Interrogatories scheduled for 11/19/26 at 1:30 p.m. in Department C34. Moving Attorney to give notice.

3. 30-2025-01511145 Goswami vs. Spirit General Contracting & Design, Inc	1. Case Management Conference 2. Demurrer to Complaint Defendants Nelson Yen and Yanhong Zhou demur to the Complaint of plaintiff Rayansh Goswami, a minor by and through his guardian ad litem Pareshkumar Goswami, on the ground that they owed plaintiff no duty of care that could support the causes of action for negligence and premises liability. This action arises out of damages plaintiff sustained when a loose tile fell on his head while he was showering. Plaintiff alleges that defendants owed a duty to exercise reasonable care in maintaining conditions within the remodeled home they recently worked on and breached that duty by failing to maintain the home in a safe and reasonable manner. Plaintiff further alleges that Spirit General Contracting & Design, Inc. knew or should have known that the tile posed a serious risk of injury to the residents living in the home. Defendants argue that they remodeled the bathroom in 2018 and then sold the property to Rayansh LLC before plaintiff's family took possession around August 14, 2023 and there was no special relationship between plaintiff and defendants that could give rise to a duty of care or any allegations that they knew or should have known about any workmanship issues. Defendants further argue that there can be no premises liability because they were not in possession or control of the property when the injury took place. The elements of a negligence cause of action are a legal duty owed by the defendant to the plaintiff to use due care, breach of that legal duty, causation, and injury to the plaintiff. (<i>Holmes v. Summer</i> (2010) 188 Cal.App.4th 1510, 1528.) "The elements of a cause of action for premises liability are the same as those for negligence." (<i>Castellon v. U.S. Bancorp</i> (2013) 220 Cal.App.4th 994, 998.) "In order to establish a cause of action for negligence, a plaintiff must show that the defendant owed her a legal duty of care. [Citation.] Duty is a question of law to be decided by the court. (<i>Wolf v. Weber</i> (2020) 52 Cal.App.5th 406, 410.) In determining whether there is a duty, the court must undertake a two-step inquiry. (<i>Brown v. USA Taekwondo</i> (2021) 11 Cal.5th 204, 209.) "First, the court must determine whether there exists a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect. Second, if so, the court must consult the factors described in <i>Rowland v. Christian</i> (1968) 69 Cal.2d 108 to determine whether relevant policy considerations counsel limiting that duty." (<i>Ibid.</i>) The <i>Rowland</i> factors are: " 'the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.' " (<i>Id.</i> at p. 217.) A seller of real property has a duty to disclose any known facts that materially affect the value or desirability of a property when those facts are not known to, or within the reach of the diligent attention and observation of, the buyer. (<i>Assilzadeh v. California Federal Bank</i> (2000) 82 Cal.App.4th 399, 410.) A breach of that duty will give rise to damages. (<i>Ibid.</i>) However, the seller "must have actual knowledge in order to be liable for failing to disclose a material fact." (<i>Ibid.</i>)
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		Here, plaintiff does not allege that Yen or Zhou had actual knowledge of the alleged defective tile. Instead, it is only alleged that Spirit General Contracting & Design, Inc. knew or should have known that the tile posed a serious risk of injury. Moreover, plaintiff does not allege that Yen or Zhou personally performed any of the remodeling work such that they might be liable for any work that was negligently performed. Under the facts alleged, the circumstances do not give rise to an affirmative duty owed by Yen or Zhou. In light of the above, the demurrer is SUSTAINED with 20 days leave to amend. Moving party to give notice.
7.	30-2025-01475570 Gutierrez vs. Westrux International, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories Defendant, Westrux International, Inc. (“Defendant”), moves for an order compelling Plaintiff, Genaro Gutierrez (“Plaintiff”), to provide verified, full and complete responses to Form Interrogatories, Set One, and awarding monetary sanctions against Plaintiff in the amount of \$950. Defendant also moves for an order compelling Plaintiff to provide verified, full and complete responses to Demand for Production of Documents, Set One, and awarding monetary sanctions against Plaintiff in the amount of \$950. If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §§ 2030.290(a)-(b); 2031.300(a)-(b).) The motion to compel may be heard even if untimely responses are served after the motion is filed. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 408 (“<i>Sinaiko</i>”).) By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2030.290(a); <i>Sinaiko, supra</i>, 148 Cal.App.4th at p. 408; <i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.) Similarly, if a party fails to serve a timely response to requests for production, all objections are waived. (Code Civ. Proc. § 2031.300(a).) Here, on July 2, 2025, Defendant served Form Interrogatories, Set One, and Demand for Production of Documents, Set One, on Plaintiff via the email address from which Defendant had been receiving communication from Plaintiff. (Declaration of Carla M. Barcelos-Pettit, ¶ 3, Ex. A.) When no responses were received, on August 7, 2025, Defendant’s counsel wrote to Plaintiff, advising that his responses were overdue and providing additional time to provide full and complete verified responses and documents. (<i>Id.</i>, ¶ 4, Ex. B.) On September 18, 2025, Plaintiff emailed and advised Defendant’s counsel that they had been using the wrong email to communicate with him and that he had never received the initial discovery he was served with, such that on that same date, Defendant re-served the discovery of Plaintiff. (<i>Id.</i>, ¶ 6, Ex. C.) When no response was received, on October 22, 2025, Defendant’s counsel wrote to Plaintiff asking for the overdue response. (<i>Id.</i>, ¶ 7, Ex. D.) On October 31, Plaintiff asked for more time, and Defendant agreed, giving him until November 14, to serve verified full and complete

responses and to serve responsive documents. (*Id.*, ¶ 8, Ex. E.) As of the drafting of the motions, Defendant’s counsel had not received any response to the subject discovery from Plaintiff or any further communication from Plaintiff. (*Id.*, ¶ 9.) **Based on the foregoing, Defendant’s motion to compel responses to Form Interrogatories, Set One, and Demand for Production of Documents, Set One, is GRANTED.**

As a result of Plaintiff’s failure to serve responses to the Form Interrogatories and Demand for Production of Documents, Plaintiff has waived any objection to the interrogatories and requests, including one based on privilege or on the protection for work product. (Code Civ. Proc. §§ 2030.290(a) [interrogatories]; 2031.300(a) [inspection demands].)

Plaintiff is ORDERED to serve verified, objection-free, responses to Defendant’s Form Interrogatories, Set One, and Demand for Production of Documents, Set One, as well as to produce documents responsive to the Demand for Production of Documents, Set One, within 30 days.

The Court notes that the subject discovery requests were served by email on Plaintiff, who is self-represented. California Rules of Court, rule 2.253(b)(2) provides that “[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6.” Additionally, “[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; **however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise.**” (California Rules of Court, rule 2.253(b)(3), emphasis added.) However, since Plaintiff appears to have acknowledged receipt of the subject discovery requests when they were re-served on September 18, 2025, the Court finds service sufficient. Nevertheless, the Court warns the parties to properly serve all documents. The failure to properly serve documents may result in a continuance or denial of a motion, as appropriate.

Sanctions

“[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories [or a demand for inspection], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290(c) [interrogatories]; 2031.300(c) [inspection demands].)

The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 139.)

Defendant requests a monetary sanction of \$950 for each of the two motions based on three (3) hours to prepare the motion and draft correspondence to Plaintiff and two (2) hours to appear for the hearing at \$175 per hour, as well as a \$15 electronic filing fee, and a \$60 court filing fee. (Declaration of Carla M. Barcelos-Pettit, ¶ 10.) In light of the Court’s ruling, the request for a monetary sanction is granted. Plaintiff has not shown that he has acted with substantial justification. While there is evidence that Plaintiff had a surgery in September, and that Plaintiff was looking for an attorney in October 2025, it has been over eight (8) months with no responses, and no indication of other circumstances that would render the imposition of a monetary sanction unjust.

As to the amount requested, these are straightforward motions that are nearly identical. As such, the Court finds that one (1) hour for each motion and one (1) hour to appear for the hearing at \$175 per hour to be reasonable, in addition to the \$75 electronic court filing fees for each motion. **The Court GRANTS a monetary sanction in the total amount of \$500 (\$175 x 2 hours +\$75 + \$75), or \$250 for each motion, against Plaintiff, Genaro Gutierrez, to be paid within 30 days of notice.**

Defendant to give notice.

8. 30-2025-01453654

**400 Spectrum Holdings
LLC vs. McSen Realty
Corp.**

- 1. Motion to Compel Answers to Form Interrogatories**
- 2. Motion to Compel Answers to Special Interrogatories**
- 3. Motion to Compel Production**
- 4. Motion to Deem Facts Admitted**
- 5. Case Management Conference**
- 6. Order to Show Cause re: Appointment of Referee**

Plaintiff 400 Spectrum Holdings LLC ("Landlord") seeks an order compelling Defendant Jie Charlene Yan ("Guarantor") to serve initial responses to Landlord's Special Interrogatories (Set One), Form Interrogatories – General (Set One), and Requests for Production of Documents (Set One) propounded on August 29, 2025 pursuant to CCP§§ 2030.290 and 2031.300, an order to deem the Requests for Admission (Set One) to Guarantor admitted pursuant to CCP§ 2033.280, and for an award of monetary sanctions in the amount of \$1,230.85 payable by Guarantor and Guarantor's attorney Hanzhang Xu, pursuant to CCP§§ 2030.290, 2031.300, 2033.280, and 2023.030(a) (the "Motion").

Pursuant to Cal. Code Civ. P. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response, the party propounding the interrogatories may move for an order compelling response to the interrogatories.

Pursuant to Cal. Code Civ. P. § 2031.300, if a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the party making the demand may move for an order compelling response to the demand.

Pursuant to Cal. Code Civ. P. § 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.

Finally, the Code of Civil Procedure requires the Court to issue sanctions against a party for its failure to respond to discovery. Cal. Code Civ. P. §§ 2030.290(c) (interrogatories); 2031.300(c) (requests for production); 2033.280(c) (requests for admission). The Court also has the power to impose monetary sanctions for abuse of the discovery process. Cal. Code Civ. P. § 2023.030(a).

In this instance, on August 29, 2025, Plaintiff's attorney propounded Special Interrogatories (Set One), Form Interrogatories – General (Set One), Requests for Production of Documents (Set One), and Requests for Admission (Set One) (collectively, the "Written Discovery Requests") on Guarantor by serving Attorney Xu electronically. (Decl. of Olinik¶4.) Thereafter, Mr. Xu requested extension, which was granted. Responses were due November 19, 2025. (Id¶5.). As of the date of the filing of this Motion, Landlord has not received any responses to the Written Discovery Requests. (Id¶6.)

		As such, Motions are GRANTED. Defendant Jie Charlene Yan is ordered to provide verified responses to Special Interrogatories, Request for Production of Documents, and Form Interrogatories (Set 1), without objections, within ____ days of service of the Notice of Ruling. The Request for Admissions, Set 1, are deemed <i>admitted</i>. Sanctions against Defendant Jie Charlene Yan in the amount of \$500 to be paid within 30 days. Plaintiff to give notice.
9.	30-2023-01351588 Shulman Roofing, Inc vs. Nguyen	1. Motion for Summary Judgment and/or Adjudication Plaintiff and Cross Defendant Shulman Roofing, Inc. (“SRI”) and Cross-Defendant Joe Shulman (“Shulman”) move for summary adjudication pursuant to CCP§ 437c as to certain causes of action set forth in Defendant and Cross-Complainant’s (“Nguyen”) Fourth Amended [Cross] Complaint. Defendant and Cross-Complainant, TUYET-HOC NGUYEN’s Opposition was untimely served and filed. Pursuant to CCP§437c(b)(2), “All opposition papers must be <i>served</i> on the moving party <i>and filed</i> with the court at least <i>20 days</i> before the date set for hearing on the motion, unless the court shortens the time for good cause shown.” In the Opposition, counsel explains, “Mr. Nguyen’s counsel, Mark D. Holmes, apologizes for this late filing, as Mr. Nguyen’s counsel calendared this Opposition to be filed and served fourteen (14) calendar days prior to the hearing on the Motions – July 2, 2026 in the mistaken belief that the Opposition deadline was fourteen (14) calendar days. (Declaration of Mark D. Holmes in support of Opposition to MSAs (‘Holmes Decl.’) ¶ 5.” As such, the Court finds good cause to CONTINUE this Motion to 9/10/2026. Notably, as to the Opposition, 13 of 15 pages contain footnotes. In total, there are 27 footnotes, which is considerable, and is construed as an attempt to avoid the 20-page limit set forth in CRC, Rule Rule 3.1113(d). Therefore, Nguyen is ordered to re-file the opposition, with minimal footnotes, by 8/21/2026. Moving party to file a Reply by 8/30/2026. <u>Trial date</u> of 9/8/2026 is CONTINUED to November 2, 2026 at 9:00 am in c34. <u>Trial readiness</u> date of 9/3/2026 is continued to 10/22/26 at 11:00 am in C34. Court to give notice.